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Provision of November 27, 2024

Register of provisions

n. 728 of November 27, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Dr. Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament

and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

containing provisions for the adaptation

of national legislation to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing

Directive 95/46/EC (hereinafter "Code");

HAVING REGARD to Regulation No. 1/2019 concerning

internal procedures with external relevance,

aimed at carrying out the tasks and

exercising the powers assigned to the Guarantor for the

protection of personal data, approved by

Resolution No. 98 of April 4, 2019, published in G.U.

No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n.

9107633 (hereinafter "Guarantor Regulation No.

1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary

General pursuant to Article 15 of the Guarantor Regulation

No. 1/2000 on the organization and functioning of the

office of the Guarantor for the protection of personal data,

doc. web n. 1098801;

Reporting Attorney Guido Scorza;

PREAMBLE

1. The complaint.

With the complaint submitted to the Authority by Ms.

XX, XX, XX, and XX, through their lawyer, it was

alleged that the State Comprehensive Institute

"Corso Matteotti" of Alfonsine (hereinafter,

the Institute) had sent, with notes dated XX, XX, and XX,

the calendar of meetings of the Operational Working Group

for School Inclusion (GLO) organized by the Institute, containing the initials of the first name and surname of all the concerned students distinguished by class, to all teachers, parents, students of the convened classes, and to the “medical health personnel,” “distinguishing only between primary and secondary school, attaching a single document signed by the School Principal (...), containing the convocations of all the certified children of the Comprehensive Institute,” thus making “each individual child immediately recognizable to every family that received the email from the Institute’s Secretariat.”

2. The investigative activity.

With a note dated XX (prot. n. XX), responding to the request for information made by this Authority, the Institute represented, in particular, that:

- “no identifying elements of the students indicated in the circulars n. XX of XX (Primary School), n. XX of XX (Lower Secondary), and n. XX of XX (Preschool), sent to your GPDR Office, were provided, such as:
- “the name: in fact, only the initials were provided, which can be identical for multiple students (e.g., XX, XX, XX, etc.). Any identification would presuppose knowledge of all the lists of all the students in the school. The lists are not known and are not public”;
- “the ‘health data’ of the individual student or ‘personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information related to their health status.’ It is reiterated that only class councils (GLO) were convened in a generic form and only through the initials of the individual student and that no element can define data related to the physical condition of the individual child. In fact, there are no data concerning the identification of the individual student and no specific data related to their health or illness other than the initials, nor services of assistance or medical care to the individual person”;
- “Lists of students from the entire institute are not provided to the parents of the school. These lists are not known, nor published by this educational institution. Therefore, parents of other classes indicated in the circular, not knowing the lists and the students of the entire institute, would never have been able to identify anyone, unless they had memorized all the lists and names of the 949 students of the institute through the initials alone. There are no personal addresses through the submissions made by ARGO”;
- “although in the circulars the heading stated ‘to all teachers of the primary school,’ ‘to all teachers of the primary school,’ in fact, the convocation only reached the interested teachers and only the classes concerned with the agenda”;
- “the teachers of the interested classes know the situation of their students because they must prepare the common educational programming documents related

to the certified children: They must prepare the PEI, educational programming document that is prepared by all the teachers of the class";

- "the situation of the certified students could of

- "It is also known informally to other teachers of the institution, as teachers from other classes come into contact with students different from their own on many occasions";

- "When faced with serious issues such as autism, paralysis of the lower limbs, hyperactivity, Down syndrome, deaf-muteness, etc., it is difficult to hide the pathology and limit it only to one's own classroom. Therefore, if one were to arrive, in the distant and difficult hypothesis, at the identification of someone through the data provided in the contested circulars, this information could have already been known in a generic form through personal assumptions of individuals. In fact, no specific health-related data about each individual has been provided by this educational institution to anyone except to the subjects provided for by law";

- "The condition of the students could also be known in a generic form (informally) to the parents of the individual class, living the daily life of the class, the school and extracurricular life (oratory, sports activities, etc.) and sometimes sharing the same doctors. Therefore, in the individual class, if one were to arrive in the distant and difficult hypothesis at the identification of someone in the contested circulars, this information could have been known in a generic form through personal assumptions of individuals. In fact, no specific health-related data about each individual has been provided by this educational institution to anyone except to the subjects provided for by law";

- "The medical staff, due to the peculiar nature of their work, is often aware of the situation of multiple students, often sharing care (the same doctor is treating multiple students). The medical staff does not know the lists of the names of all the children in the institution and therefore identification is impossible. In any case, the summons was sent only to specific doctors and not to all doctors of the ASL of Ravenna";

- "The comprehensive school of Alfonsine is relatively small. Alfonsine is not a large city, but a small town where everyone knows each other—parents, students, teachers—being territorially isolated from other contexts and living autonomously";

- "Therefore, although the calendar of meetings of the Operational Working Group for School Inclusion (GLO) organized by the Institute was sent, indicating the initials of the first name and surname of all the students concerned, distinguished by class, to all teachers of the interested classes, to the parents of the interested classes, and to the students of the summoned classes, as well as to the only interested medical staff, distinguishing between primary and secondary school, reporting the convocations of some certified children of the Comprehensive Institute, it is not possible to identify anyone as specified previously, and if identification did occur, it is independent of the circular because the information was already known beforehand";

- "The GLO summons is a legal obligation that this institution must fulfill, particularly this year, because the regulations regarding the conduct of the GLO and the drafting of the PEI have changed";

- "Therefore, this administration found itself needing to provide, within a very short time frame (XX-XX), indications regarding the notice and the new regulations to the support teachers who had to quickly adapt to it. Subsequently, it was compelled to convene the GLO and to inform the interested parents and doctors. In practice, there was a close time frame (XX-XX) for the convening of all GLOs and the initiation of procedures";

- "It is understood that, given the number of students, which is 52, and the necessity to promptly inform everyone about the new regulatory provisions, if this had not been done, it would have constituted a failure to comply with a legal obligation, and the GLOs would have been convened with much longer timelines. Moreover, the failure to share the new legal provisions would have led to incorrect procedures, the failure to draft programming documents, and the failure to initiate the activities planned for certified children within the timelines established by the regulations. Such behavior on the part of the school principal, who is responsible for the processing, is seen as the execution of a task of public interest based on Article 6, paragraph 1, letter e) of the GDPR: 'the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.'

Based on the information gathered, the Office notified, with a note dated XX (prot. n. XX), the Institute, as the data controller, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of measures referred to in Article 58, paragraph 2, of the Regulation, as the sending, on multiple occasions, of the calendar of GLO meetings organized by the Institute, indicating the initials of the first name and surname of all the students concerned, distinguished by class, to all teachers, students, and parents as well as to the healthcare personnel invited to participate in the GLO meetings scheduled for the dates indicated in the calendar would have resulted in a communication of personal data in violation of Articles 5, paragraph 1, letter a), 6, 9 of the Regulation and 2-ter and 2-sexies of the Code.

Therefore, the Office invited the aforementioned data controller to submit defensive writings or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, of Law No. 689 of 24/11/1981).

The Institute has submitted its written defenses."

defensive, with note of the XX (prot. n. XX),
representing, in particular, that:

- "in the circulars under examination, there are no data concerning the identification of the individual student, and there is no specific data related to health status or illness except for the initials of the same, nor assistance or medical services to the individual person. It should also be kept in mind from now on the contingent situation in which the sending of the above-mentioned notes concerning the calendar of meetings is inserted: the Principal has indeed been engaged in addressing the peculiar need to adopt the new national PEI model (by the deadline of 31.10), as provided for in Article 7, paragraph 2, letter g) of Legislative Decree 182/2020 implementing Legislative Decree 66/2017";
- "at the same time and immediately, the relevant procedures have also been activated to illustrate to all teaching staff and families the new programming models and the different methods of compilation compared to the previous operational practice. In this sense, it is known that the convening of the GLO is a legal obligation that the institution must comply with, particularly in the school year XX because the regulations concerning the conduct of the GLO and the drafting of the PEI have been recently modified. It follows that the practices used in the institution regarding the convening of the GLO are compliant with the law, as previously expressed. In fact, the sending of the convocations is usually done through the ARGO platform, which applies all necessary guarantees for compliance with the privacy code. Therefore, the procedures have been carried out in full compliance with the established timing in order to avoid non-compliance with obligations imposed by the regulatory provisions";
- "there has been no evasive intent regarding the regulations for the protection of personal data, as the conduct of the undersigned has always been guided by respect for the principles of data minimization and accuracy, integrity and confidentiality, lawfulness, fairness and transparency, and purpose limitation. This is evidenced by the fact that in the circulars sent, specifically no. XX of XX (Primary School), no. XX of XX2 (Lower Secondary School), and no. XX of XX (Preschool), the names of the students have been indicated with simple initials that do not allow for the revelation of the identity of the students; there are also no details that could configure a conduct of the data controller that is not compliant with the standards of lawfulness, fairness, and transparency in accordance with Article 5, paragraph 1, letter A) of the Regulation. The legal principle requires that sensitive data can only be processed by subjects through organizational methods that render the data subject unidentifiable, as has occurred in this case: the adoption in the circulars of only initials has effectively made the identification of the students unintelligible, nor, in any case, can a significantly probable association between the data and the individual be inferred. The charges made and here firmly contested can in no way lead to a censurable conduct on the part of the data controller and, regarding the investigation so far conducted by the Department, it has not taken into account what has already been said and is further reiterated here, regarding the reasons stated below";
- "in the above-mentioned circulars, the 'personal and sensitive' data have been purged; in particular, it is highlighted that (...) only initials have been provided and they can be identical for multiple students (...). Any potential identification would presuppose knowledge of all the lists of all the students in the school. The lists are not known and are not public; in this regard, it is recalled that this Authority, in response to some clarifications requested by the Order of Journalists, has highlighted how the use of

initials, instead of the full name, can be a useful tool for anonymizing the subject, as it is stated: ‘When there is no such necessity or when there are specific legal limitations on the disclosure of information often related to certain news events, the journalist can still refer to these preferring solutions that protect the privacy of those involved (for example, using initials, fictitious names, and so on)’”;

- “the lists of students from the entire institution are not provided to the parents of the school. These lists are not known, nor published by this educational institution. Therefore, the parents of other classes indicated in the circular, not knowing the lists and the students of the entire institution, would not have been able to trace the identification of anyone, unless they knew all the lists and names of the 949 students of the institution through only the initials. Personal addresses are not present through the submissions made by ARGO”;

- “now, personal data is a dynamic concept, on which the substantial context and its intrinsic components have predominant relevance: in this specific case, it is important to note that the teaching staff of the relevant classes is well aware of the needs of their students as well as the circumstances already ‘photographed’ that pertain to the conditions of the students, as they must draft the common educational programming documents related to certified children. Furthermore, the situation of certified students could indeed be known to other teachers of the institution as teachers of other classes come into contact with students different from their own on many occasions”;

- “to this, it should be added that the condition of the students could concretely have been informally and generically communicated to the following subjects: the parents of the students who actively participate in the school microsystem and...”

extracurricular; the medical-health personnel. By the way, the medical staff does not know the lists of the names of the children throughout the institution and therefore identification is impossible. In any case, the summons was sent only to specific doctors and not to all doctors of the ASL of Ravenna”;

- “It is the practice of the Institute that information regarding the summons of the working group, GLO, indicating the name or initials of the student for whom they were organized, is communicated only to the parents of the interested student, to the teachers of the class to which the student belongs, and to the subjects identified by the sector regulations involved in the therapeutic and educational intervention followed by the student, and therefore it is a single episode for a short-duration summons and solely for the informational purpose of the changed legislative conditions. (...) For each certified child, normally, three annual GLOs are convened, one initial, one intermediate, and one final, as can be seen from the teachers' activity plan for the school year XX. (...) It should be noted that, in the past school year, although three circulars were issued on XX, XX, and XX, they refer to different school orders and to different student convocations. Therefore, it is a single summons for each child (initial GLO), as can also be inferred from the teachers' activity plan. Regarding the procedures adopted in the intermediate and final GLOs, it can be noted that, even in the same past school year XX, the usual attention was paid to the practices adopted and therefore the summonses are addressed only to the subjects provided for by the regulations involved in the therapeutic and educational intervention followed by the student. The attachments include the intermediate and final GLOs as XX for all school orders. (...). The working group meets only three times a year as per the teachers' activity plan, and the participants in the GLO can already be inferred from the activity plan. (...) In this context, the knowledge of the data contained therein has occurred in favor of a determined and contained number of subjects within the school community (teaching staff, parents, medical personnel) who are well-informed and promptly updated about the dynamics of the class, and the data subject to communication have very likely already been made known and/or learned informally or generically over the years. Ultimately, it follows that, at this time, since it is not a publication to an unlimited number but to a limited number who were already aware of such information, the application of the exception referred to in Article 9, paragraph 1(e) of the GDPR is possible, which considers the processing of data “relating to personal data manifestly made public by the data subject”;

- “The knowledge of the information regarding the summons of the aforementioned working group occurred in the reserved area of the electronic register, therefore not accessible to everyone. In fact, access to the reserved area of the electronic register is granted with an online identifier: no elements have been highlighted that could identify the student online as communications occur through the

ARGO electronic register, which does not highlight the addresses of the recipients of the circulars. Emails were not sent from the Institute's Secretariat to parents and teachers, but the ARGO electronic register was used, in compliance with the Data Protection Code (...). It should be noted that, although in the heading of the circulars it was written "to all teachers of the primary school," in fact, the summons was sent only to the interested teachers and only to the classes concerned by the agenda" (...):

- "It is patently evident that the conduct in question was absolutely aimed at fulfilling institutional purposes and tasks: that said, no one can deny that this behavior constitutes the execution of a task of public interest based on Article 6, paragraph 1, letter e) of the GDPR (...) The practices used in the institute regarding the summons of the GLO are respectful of the regulations as previously expressed. Furthermore, the number of students involved in any dissemination is not that of the entire institution, but must be divided by the three school orders and is much more limited (...) It is further emphasized that identification, as reiterated in the previous memorandum, is almost impossible and if such a risk were to occur, it would be extremely low because it would presuppose knowledge of the lists of students from each school order, which are not known to everyone. It would not even be possible to memorize the names of all the students in the institution because class lists are not provided to then reconstruct them according to initials which, as stated, are not definitively identifying of the individual, but could refer to multiple people";

- "It thus becomes evident that the content of the complaint and the facts and evaluations made by the Department fail to describe conduct characterized by offensiveness and actual violation of the provisions on the processing of personal data, but only a fear based on mere "plausibility": if we were in the context of a criminal proceeding, one might almost speak of a "crime of suspicion" and, based on mere suspicion, it seems frankly excessive and unreasonable – and with an abnormal impact – to lean towards the adoption of the sanctioning measures referred to in Article 58, paragraph 2 of the Regulation, considering, moreover, that on no other occasion has the undersigned been the recipient of allegations of violations of the regulations in question. From this it follows

****Irrelevance and Groundlessness of the Complaints Raised****

- "The inadequacy of the conduct to reveal health conditions, physical identity, physiological data, genetic, biometric, psychological, economic, cultural or social data, origin, and political opinion, etc.";

- "Any excess and/or illegitimacy of the processing cannot be attributed to any fraudulent conduct of the undersigned management: there are no real psychological coefficients (intention, foresight, and will) that characterize the subjective element of fraud, understood as the projection of the agent's will towards the production of the harmful event. The undersigned has not had any evasive intent regarding the regulations on personal data protection. The nature of the violation is evidently negligent as it is due to mere material error. It should be emphasized that the intent of the undersigned has always been characterized by maximum confidentiality in the dissemination of information and inspired by the well-known criteria set forth in Article 3, which establishes the principle of data minimization, which is expressed in two directions: 1. Principle of necessity: the processing of data must be carried out only when necessary, favoring, at most, the use of anonymous data; 2. Principle of essentiality of the personal data used: only the data indispensable for pursuing the lawful and declared purpose connected to the processing must be used.";

- "The subject of the report/complaint was episodic and absolutely contingent, for all the reasons stated above.";

- "Regarding the identification and granting of mitigating circumstances, it is emphasized in this case the uniqueness of the complaint, as the undersigned management has not received any other negative feedback and has been involved for the first time, in many years of impeccable activity, in this type of issue. Therefore, considering the absence of previous sanctions and reports regarding the processing of personal data, and taking into account the professional role held, the undersigned immediately made themselves available and provided full cooperation in order to bring the truth to light without hiding anything from this esteemed Authority."

During the hearing held on XX, the school institution also declared: "It should be noted that there have

been no further violations; everything is attributable to a single episode, the communication was sent to three different school levels, but still to a limited number of people who were already aware of the information or who were unable to trace it. The sending of the unique circular occurred to fulfill institutional obligations; the regulations regarding GLO were modified during the year. There was no intent to send; the privacy regulations are respected with care by the Institute, and the DPO was also involved (...). When a circular is sent to everyone, collective addresses (e.g., @teachers) are used, so if I had wanted to send the communication to everyone, I would have used these addresses. In this case, the sending was done by mistake, out of haste; the timeframes were so tight concerning the received directives that an unpremeditated and unintentional sending occurred. There was no intent to evade the regulations on personal data protection. The individuals to whom the communication was sent were already aware of the data or unable to access it because they did not know all the elements relating to the interested parties (lists of names and surnames of the students in the class). In the school, there are other bodies such as the GLI, which is a collective operational group of the Institute (composed of representatives of disabled parents, institutions, doctors, teachers), which is a top body that was not a recipient of the information in question. There have been no consequences, complaints, or any litigation. No further reports have been received from either parents or the aforementioned top bodies, nor has there been any consequence from the sending of the circular. In the PAI document that is prepared annually, there has been no felt need to include anything regarding the practices used by the school. Adapting pseudonymization measures is not simple for a school institution, but the Institute is already working in this direction, that is, by replacing the student's name with a code. The encryption key would be delivered in a sealed envelope to the students and teachers. The Institute often organizes courses on personal data protection aimed at staff."

****3. Applicable Regulations.****

****3.1 The Regulatory Framework.****

Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter, the "Regulation"), defines "personal data" as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person" and "data concerning health" as "personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about his or her health status" (Article 4, points 1 and 15, of the Regulation).

According to the Regulation, the processing of personal data carried out in the public sector is lawful when it is necessary "to comply with a legal obligation."

to the data controller" or "for the execution of a task in the public interest or related to the exercise of public powers vested in the data controller" (Article 6, paragraph 1, letters c) and e) and paragraphs 2 and 3 of the Regulation; Article 2-ter of the Code).

More generally, European legislation provides that "Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation regarding processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures to ensure lawful and fair processing (...)" (Article 6, paragraph 2 of the Regulation).

National legislation has introduced more specific provisions to adapt the application of the rules of the Regulation, determining, more precisely, specific requirements for processing and other measures to ensure lawful and fair processing (Article 6, paragraph 2 of the Regulation) and, in this context, has provided that processing operations consisting of the "dissemination" and "communication" of personal data are permitted only when provided for by a legal norm, regulation, or general administrative acts (Article 2-ter of the Code).

Regarding special categories of personal data, processing is, as a rule, permitted where "necessary

for reasons of substantial public interest based on Union or Member State law, which must be proportionate to the pursued purpose, respect the essence of the right to data protection, and provide for appropriate and specific measures to safeguard the fundamental rights and interests of the data subject" (Article 9, paragraph 2, letter g), of the Regulation), provided that the processing is "provided for by Union law or, in domestic law, by provisions of law or regulation or by general administrative acts that specify the types of data that may be processed, the operations that can be carried out, and the relevant substantial public interest, as well as the appropriate and specific measures to safeguard the fundamental rights and interests of the data subject" (Article 2-sexies, paragraph 1, of the Code).

The data controller is then required to comply with the principles regarding data protection, including the principle of "lawfulness, fairness, and transparency" under which data must be processed lawfully, fairly, and transparently in relation to the data subject (Article 5, paragraph 1, letter a) of the Regulation).

3.2 The processing of personal data carried out by the Institute.

From the assessment carried out, based on the elements acquired and the facts that emerged following the investigative activity, as well as the subsequent evaluations of this Department, it has been established that the Institute has sent, on several occasions, the calendar of GLO meetings, indicating the initials of the first name and surname of all the students concerned, distinguished by class, to all teachers, students, and parents, as well as to the healthcare personnel invited to participate in the GLO meetings scheduled for the days indicated in the calendar.

Preliminarily, it is noted that, pursuant to Article 4, paragraph 1, no. 15 of the Regulation, health-related data are considered "personal data concerning the physical and mental health of a natural person, including the provision of health care services, which reveal information about his or her health status."

Given the definition of personal data and health-related data (Article 4, points 1 and 15, of the Regulation), it is believed that the convening of a GLO meeting for school inclusion, provided for by sector legislation on disabilities, represents in itself information related to the health status of the student for whom it is convened.

It is also stated that the Authority has traditionally clarified that "the practice followed by some administrations of replacing the name and surname of the data subject with only the initials is in itself insufficient to anonymize the personal data contained in the acts and documents published online. Moreover, the risk of identifying the data subject is all the more likely when, among other things, alongside the initials of the name and surname, further contextual information remains that still makes the data subject identifiable (...)" (see Provision of May 15, 2014, no. 243 containing "Guidelines on the processing of personal data, including in acts and administrative documents, carried out for publicity and transparency purposes on the web by public entities and other obligated entities," in particular paragraph 3).

The information related to the convening of the aforementioned working group, indicating the name or initials of the first name and surname of the student for whom they were organized, may only be communicated to the parents of the student concerned, to the teachers of the class to which the student belongs, and to the subjects identified by sector legislation, involved in the therapeutic and educational intervention followed by the student himself (see Article 9, paragraph 10, Legislative Decree of April 13, 2017, no. 66; see Provision of April 28, 2022, no. 148, web doc 9777156).

That said, while taking into account the intention of the Institute, as the data controller, not to make the students identifiable by replacing the name with the initials of the first name and surname, it is noted that the information related to the convening of the aforementioned working group is suitable for disclosing information about the health status of the subjects concerned (see Provision of May 12, 2022, no.

175 doc. web n. 9781912). Furthermore, "identification does not only refer to the possibility of retrieving the name and/or address of a person, but also to the potential identifiability through identification, correlation, and deduction" (Article 29 Working Party, Opinion 05/2014 on anonymization

techniques, WP216; regarding the identifiability of initials see also Decision of March 2, 2023, no. 65, doc. web n. 9874480; Decision of February 25, 2021, no. 68, doc. web n. 9567429; Decision of July 2, 2020, no. 118, doc. web n. 9440025; Decision of July 2, 2020, no. 119, doc. web n. 9440042).

Nor can it be considered relevant, for the purposes of evaluating the overall conduct of the data controller, what was stated regarding the fact that parents, teachers, and healthcare personnel could have been “already made known and/or learned even informally or generically” within the school community.

In light of the above considerations, the Institute has informed the families of the interested parties, the teaching staff, and some healthcare professionals regarding the information related to the health status of the students (see the definition of “communication” of personal data contained in Article 2-ter, paragraph 4, letter a) of the Code).

For these reasons, the Institute has carried out a processing of personal data, in violation of Articles 5, 6, 9 of the Regulation and Articles 2-ter and 2-sexies of the Code.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the Institute, as the data controller, during the investigation – the veracity of which may be subject to accountability under Article 168 of the Code – although deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure pursuant to Article 14, paragraph 1, of the Garante Regulation no. 1/2019, as none of the cases provided for by Article 11 therein apply.

Therefore, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Institute is noted, in violation of Articles 5, 6, and 9 of the Regulation as well as Articles 2-ter and 2-sexies of the Code. The violation of the aforementioned provisions makes the administrative sanction provided for by Article 83, paragraph 5, of the Regulation applicable, pursuant to Articles 58, paragraph 2, letter i), and 83, paragraph 3, of the same Regulation, as also referenced by Article 166, paragraph 2, of the Code.

Considering, in any case, that the conduct has exhausted its effects, the prerequisites for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i) and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Garante, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the College [of the Garante] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Garante's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Garante Regulation no. 1/2019).

Considering that the violation of the aforementioned provisions by the Institute occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in the specific case, all the established violations – Articles 5, 6, and 9 of the Regulation as well as Articles 2-ter and 2-sexies of the Code - are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also referenced by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000 (twenty million/00).

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

- with specific regard to the nature, gravity, and duration of the violation, it should be noted that the communication of data concerned multiple students (see Article 83, paragraph 2, letter a), of the Regulation);
- with specific regard to the subjective profile of the violation, it occurred by mistake, as the Institute acted under the belief that it had rendered the interested parties unidentifiable (Article 83, paragraph 2, letter b), of the Regulation);
- regarding the categories of personal data communicated, they include special categories of data (Article 83, paragraph 2, letter g) of the Regulation).

In light of this specific circumstance, it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (see European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR") of May 24, 2023, point 60).

Whereas the data controller is a school institution and, therefore, a subject of limited size, the following mitigating circumstances must also be considered:

- there are no relevant previous violations committed by the data controller (art. 83, par. 2, lett. e) of the Regulation);
- the degree of cooperation shown by the data controller with the supervisory authority (art. 83, par. 2, lett. f) of the Regulation);
- the event occurred due to an error as the school principal had to provide guidance to teachers in a short period regarding the recent changes in the regulations concerning the conduct of the GLO and the drafting of the PEI (art. 83, par. 2, lett. k) of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the administrative fine at €1,000.00 (one thousand/00) for the violation of articles 5, 6, and 9 of the Regulation as well as articles 2-ter and 2-sexies of the Code, as an administrative pecuniary sanction considered, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and deterrent.

In this context, it is also considered that, pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Garante Regulation no. 1/2019, the publication of this section containing the injunction order on the Garante's website should proceed.

This is in consideration of the specific circumstances of the case, concerning the communication to the families of the interested parties, the teaching staff, and some health professionals of information related to the health status of multiple students.

Finally, it is noted that the conditions of art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE Garante

declares, pursuant to articles 57, par. 1, lett. f), and 83 of the Regulation, the illegality of the processing carried out by the State Comprehensive Institute "Corso Matteotti" in the terms set out in the motivation, for the violation of articles 5, 6, and 9 of the Regulation as well as articles 2-ter and 2-sexies of the Code;

ORDERS

pursuant to articles 58, par. 2, lett. i) and 83 of the Regulation, as well as art. 166 of the Code, the State Comprehensive Institute "Corso Matteotti" of Alfonsine (RA), located at via Murri n. 26 - 48011 - Tax Code: 80101290395, to pay the total sum of €1,000.00 (one thousand/00) as an administrative pecuniary sanction for the violations indicated in the motivation. It is represented that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to resolve the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

ORDERS

the State Comprehensive Institute "Corso Matteotti" of Alfonsine (RA):

- to pay the total sum of €1,000.00 (one thousand/00) in case of failure to resolve the dispute pursuant to art. 166, paragraph 8, of the Code, according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of law no. 689/1981;

DISPOSES

pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Garante Regulation no. 1/2019, the publication of the injunction order on the Garante's website;

pursuant to art. 17 of the Garante Regulation no. 1/2019, the annotation of this provision in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u), of the Regulation.

Pursuant to articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, it is possible to appeal this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, November 27, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei